ORDINANCE NO. 489

AN ORDINANCE RESCINDING ORDINANCE NO. 455 ALLOWING THE CITY ATTORNEY TO PROCESS WORTHLESS CHECKS, OR DRAFTS ("HOT CHECKS") FOR HOLDERS THEREOF WHICH DO NOT EXCEED FIVE HUNDRED ($500.00) DOLLARS, DECLARING AN EMERGENCY; AND TO DEPOSIT EXISTING PROSECUTING ATTORNEY FUNDS INTO THE CITY GENERAL FUND.

WHEREAS, the City of Rector enacted Ordinance No. 455 to allow for a Hot Check Program through the City Attorney's Office; and

WHEREAS, the law has changed since the enactment of the Ordinance and it is no longer financially feasible for the City Attorney's Office to operate such program; and

WHEREAS, the City Attorney's Office will still review and approve hot check affidavits and just not accept a fee for doing so because of the bookkeeping procedures involved; and

WHEREAS, the City Clerk has in her possession certain funds made payable to the City Attorney and there is no longer a City Attorney Hot Check Fund, so said funds should be endorsed by the City Attorney and deposited into the City General account.

NOW THEREFORE BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS:

SECTION 1: Ordinance No. 455 should be rescinded.

SECTION 2: The City Attorney shall endorse any checks made payable as a result of the hot check fee over to the City of Rector to be deposited into the City General Fund.

SECTION 3: Hot checks are being received every day and fees collected thereon, therefore the moneys are being held in limbo and an emergency is hereby declared to exist and this Ordinance is immediately necessary for the preservation of the public peace, health and safety and shall become effective on the date of its approval by the Rector City Council members.

PASSED:

ATTEST:

Kenneth R Burns
CITY CLERK

APPROVED:

Ronald E Elsey
MAYOR

APPROVED AS TO FORM:

Carla Powell
CITY ATTORNEY